
Re: SCR and Data Provisioning

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>

6 October 2023 at 16:55

To: Paul Panter <paul.panter@biltt.org>

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hi Paul,

The ICO are reasonably clear on this:

<https://ico.org.uk/for-organisations/uk-gdpr-guidance-and-resources/individual-rights/right-of-access/how-should-we-supply-information-to-the-requester/>

Also you may need to consider that they don't have access to a printer, and how the solicitor will access the data if the link provided is for the requester? It really depends on the volume really and only if it is considerable you might have grounds to refuse, but if it's a normal amount of data for a SAR then you do need to print it. The way that your budget works for printing is not a consideration. I ran this past Victoria, our legal director, as this is a SAR and hasn't been logged as one on the Knowledge Bank. She did advise being very careful about disclosing any information that you are not the controller of, particularly if a pupil has come to you in these circumstances. I would advise logging it on our system so that Victoria can advise further.

Many thanks,
Tammy

On Fri, 6 Oct 2023 at 16:00, Paul Panter <paul.panter@biltt.org> wrote:

Hi Tammy,

I'll check the SCR locations.

I can confirm that the BILTT SCR and GEC SCR are on Sharepoint and being backed up in the cloud (immutable).

I need to confirm that the SJS SCR and Grange SCR are as well.

Even then I take local and offline backups of a our server data server storage.

On another note, I wonder if you can advise:

A parent requires access to some Pupil Information (their child) they want to provide to their solicitor for a legal case against the Borough which our organisation has taken the pupil from. The parent has been sent a shared link (safe and secure) as he uses email etc. so can access the data.

They are requesting that we also print all the information out and provide it to them.

Are we legally bound to print this data out?

The current stance is (Jo Tift, pupil admin staff and me) not to print it all out for cost reasons (all staff under print quotas now so printing prioritised) and more pertinently the provision of data is much more secure using shares OneDrive/Sharepoint).

Have a good weekend!

Kind Regards

Paul Panter
ICT Manager

paul.panter@biltt.org
01234 408467 Ext:467

 BILTT_Logo.jpg

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Chestnut Avenue, Bromham,
Bedford MK42 8HP
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From: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Sent: 03 October 2023 14:41

To: Paul Panter <paul.panter@biltt.org>

Subject: Re: Apologies

Hi Paul,

No problem at all. I will copy you in on the followup anyway especially as we had a discussion about the SCR. A school recently had a cyber attack where the SCR was encrypted. Legally you can't open without one and they didn't have a backup, so they ended up being closed for over a week. Everyone was a bit vague today about where there's is kept and whether it is backed up or not. I know you are moving files over to SharePoint, so this might be a good argument to push on with that?

Many thanks,
Tammy

On Tue, 3 Oct 2023 at 14:18, Paul Panter <paul.panter@biltt.org> wrote:

Hi Tammy,

My apologies.

I won't be able to make the call today.

I'm trying to complete some project testing with a 3rd party.

Sorry for the late notice.

Kind Regards

Paul Panter
ICT Manager

paul.panter@biltt.org
01234 408467 Ext:467



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